

13. 9:00 AM CASE NUMBER: C25-00518
CASE NAME: MARIO GUATEMALA VS. MUHAMMAD ASHRAF
MOTION TO BE RELIEVED AS COUNSEL RE MUHAMMED AZEEM ASLAM
FILED BY: ASLAM, MUHAMMED AZEEM
TENTATIVE RULING:

Good cause shown, the Motion to Be Relieved as Counsel is **granted**.

14. 9:00 AM CASE NUMBER: C25-00518
CASE NAME: MARIO GUATEMALA VS. MUHAMMAD ASHRAF
MOTION TO BE RELIEVED AS COUNSEL RE: CALIFORNIA WHEELS LLC.
FILED BY: CALIFORNIA WHEELS & TIRES LLC., A CALIFORNIA LIMITED LIABILITY COMPANY
TENTATIVE RULING:

Good cause shown, the Motion to Be Relieved as Counsel is **granted**.

15. 9:00 AM CASE NUMBER: C25-00518
CASE NAME: MARIO GUATEMALA VS. MUHAMMAD ASHRAF
MOTION TO BE RELIEVED AS COUNSEL FOR DEF MUHAMMAD AMAD ASHRAF FILED 08/21/26 BY
DEF ATTORNEY
FILED BY: ASHRAF, MUHAMMAD AMAD
TENTATIVE RULING:

Good cause shown, the Motion to Be Relieved as Counsel is **granted**.

16. 9:00 AM CASE NUMBER: C25-00967
CASE NAME: WENDY SOUZA VS. LIVE NATION ENTERTAINMENT, INC.
***HEARING ON MOTION IN RE: STRIKE 1ST AMENDED COMPLAINT**
FILED BY: LIVE NATION ENTERTAINMENT, INC.
TENTATIVE RULING:

By stipulation, this hearing was continued to November 19, 2026.

17. 9:00 AM CASE NUMBER: C25-02229
CASE NAME: PIERCE MALICK VS. EVEN YEAR KIDS, LLC
***HEARING ON MINOR'S COMPROMISE RE: PIERCE MALICK**
FILED BY: MALICK, PIERCE
TENTATIVE RULING:

Judge Campins recused pursuant to Code of Civil Procedures section 170.1(a)(6) on September 9, 2026. The hearing will be reset in a new department.

18. 9:00 AM CASE NUMBER: C25-02999

CASE NAME: 4LEAF, INC., VS. URBAN37 INC.

***HEARING ON MOTION IN RE: TO RECOVER COSTS OF PERSONAL SERVICE**

FILED BY: 4LEAF, INC.,

TENTATIVE RULING:

Before the Court is Plaintiff 4Leaf, Inc.'s Motion to Recover Costs of Service on Defendant Urban37, Inc. 4Leaf claims that, because the agent for service of process for Urban37, Raylee Glasser, evaded service and failed to return a Notice and Acknowledgement of Receipt of the summons and complaint, Urban37 should be responsible for the expenses incurred in serving Urban37 by alternate means.

Code of Civil Procedure 415.30 shifts the "reasonable expenses" of service by other methods *only* if "A copy of the summons and of the complaint [is] mailed (by first-class mail or airmail, postage prepaid) to the person to be served, together with two copies of the notice and acknowledgment provided for in subdivision (b) and a return envelope, postage prepaid, addressed to the sender." It is not the case, as 4Leaf attempts to convince the Court, that simply sending a summons and complaint by mail, and thereafter failing to receive a notice and acknowledgment, shifts all subsequent costs. The mailing must comply with section 415.30(a) and the expenses incurred subsequently must be reasonable. Neither is true here.

First, the evidence is inconclusive as to whether Ms. Glasser ever "evaded" service. Nationwide made three attempts in October 2025, saw between 2 and 3 cars in the driveway, and failed to make contact. Those attempts were at 6:32 on a Friday evening, 9:12 on a Saturday morning, and 1:18 on a Sunday morning. If Ms. Glasser had gone away for a single weekend, she would miss service.

Next, counsel mailed a packet to Ms. Glasser. According to the mailing receipt, the packet weighed 7.20 oz. The mailing receipt is for a single mailing; there is no evidence that counsel purchased stamps for the return envelope she claims was included. The proof of service notes that it contains a summons, complaint, ADR package, Notice of Hearing – Case Management Conference and two copies of a Notice of Acknowledgement of Receipt (sic). (Contrary to counsel's declaration, ¶ 5, the proof of service says nothing about including a "Notice of Assignment to One Judge for All Purposes" or an "Order to Show Cause." It does not state that a prepaid envelope was enclosed. Ms. Glasser declares that she did not receive a prepaid return envelope and indeed does not mention the Notice and Acknowledgment of Receipt, although the McCormack declaration mentions her receipt of this document. Susanna Chenette declares that she did include such an envelope, but she did not perform the mailing (Laura Prongos did) and there is no proof that it was included. Counsel Chenette has no personal knowledge of the inclusion of that envelope, and her declaration has already been noted above to be inconsistent with the Proof of Service. Finally, the summons was also defective, as the bottom section was left blank.

On the back of the single weekend of service attempts and the potentially deficient mailing effort, counsel jumped to an expensive option of a server who would perform investigations. Despite that

investigation showing no new information, Ms. Glasser was successfully served on the third attempt. There is no showing that the expenses were necessary – she was simply personally served as was originally intended.

Plaintiff 4Leaf argues that the Alameda employment case is wholly separate from this case, attempting a sleight of hand by saying that Urban37 is not a party to the Alameda case. This statement is plainly deceptive, as the individual 4Leaf was attempting to serve on behalf of Urban37 in *this* case is plaintiff *against* 4Leaf in the Alameda case. The two cases are plainly related enough that it would not have been unreasonable to reach out to Raylee Glasser’s employment attorney to inquire as to whether he would be representing her in this action. Indeed, as the Declaration of Bryan McCormack demonstrates, at the very same time, these counsel were meeting with respect to a subpoena on Urban37 in the employment matter.

Although 4Leaf has failed to show that its requested costs were reasonable, it is also the case that, upon receipt of the defective mailed service, counsel for Urban37 could have made counsel for 4Leaf aware of his representation in the new action. He never quite explains why *he* did not. In that circumstance, it does seem equitable to shift the *reasonable* cost of additional attempts at service, which would be \$128.75. The Motion is otherwise **denied**.

19. 9:00 AM CASE NUMBER: C26-00393
CASE NAME: ROBERTA JOYCE LOACH VS. EITAN COHEN
*HEARING ON MOTION IN RE: TRIAL PREFERENCE AND TRIAL SETTING
FILED BY: LOACH, ROBERTA JOYCE
TENTATIVE RULING:

Given the Notice of Settlement, this matter was vacated.

20. 9:00 AM CASE NUMBER: C26-00948
CASE NAME: ABRAHIM YASEEN HOMRAN VS. SN SERVICING CORPORATION
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: SN SERVICING CORPORATION
TENTATIVE RULING:

The demurrer of Defendants SN Servicing Corporation and U.S. Bank Trust National Association as Trustee of LB-Igloo Series VI Trust to the complaint of Plaintiff Abraham Mohamed Yaseen Homran is **sustained without leave to amend** as to the Fifth Cause of Action (Declaratory Relief), and **sustained with leave to amend** as to the First, Second, Third, Fourth, Sixth, Seventh, and Eighth Causes of Action.

Background

Abraham Mohamed Yaseen Homran is the owner and occupant of real property located at 851 Monterey Ct., Brentwood, California, APN 007-440-002-9. In October 2023, Homran obtained a